

(i) Routine tasks

In T 1062/96 of 11 December 1997 the board found that the **posting of a letter** prepared and signed by the representative was a typical routine task which the representative could entrust to an assistant (see also T 335/06). In the case in question the assistant was expressly instructed to send the letter by fax on the same day. In a properly organised office the representative could rely on the correct execution of such an instruction. The sending of the fax did not require any specialised knowledge or qualification. Therefore, the assistant, here a secretary, who had proven to be reliable in the daily work of the representative's office, could have been expected to do this job within her own responsibility. Since the order was to be carried out more or less immediately, a later check whether the fax had actually been despatched was not necessary. See also T 2023/14.

In T 2253/13 the representative tasked an assistant with sending the statement of grounds of appeal to the EPO by fax on the final date of the relevant time limit, however the assistant overlooked that the fax transmission had not been successful. The board was satisfied that the appellant was unable to observe a time limit in spite of all due care. The representative was entitled to transfer such a routine task to an assistant without infringing all due care in dealing with the filing of the grounds of appeal, and there had been an excusable isolated mistake by the assistant.

In T 2450/16 the board held that, at least in the case in hand, the preparation of a notice of appeal by the representative's assistant could not be considered to constitute a routine task that could rightfully be entrusted to her by the representative.

In T 3029/18 of 3 June 2020 the board concluded that, once a representative had decided what fee had to be paid on what day, acting on the instruction was a routine task that could be left to an experienced and reliable assistant. In the board's view, it would be going too far and out of proportion to require another check of whether the instruction had been properly carried out. On this point, it endorsed the finding of the board in T 1355/09 that a very small firm was not required to have a system of checks in place.

(ii) Choosing a suitable person for the task

In T 191/82 (OJ 1985, 189) the non-payment in due time of an additional fee was found to be clearly attributable to an unfortunate concatenation of errors by nevertheless properly selected and experienced employees.

In J 12/84 (OJ 1985, 108) the due care required in the circumstances was not observed when the **employees of another company** were instructed to sign for registered mail addressed to the representative, as he was not able to supervise the work of such persons not employed by his firm.

In T 309/88 of 28 February 1990 the board stated that even **employees without formal training** as patent attorney's assistants could perform the task of recording and monitoring time limits. This was routine work which did not require specialised knowledge and

professional qualifications. However, the assistant had to be properly instructed in the tasks to be performed and a trained employee had to be on hand to give advice.

(iii) Properly instructing the assistant

In T 1764/08 the board held that **filing an admissible appeal was not a routine task**, but rather a complicated task which needed clear instructions from the professional representative to his assistant.

In T 2336/10 the board held that the representative did not appear to have issued proper instructions as regards the correct way to deal with the time limit for **filing a statement of grounds of appeal**. An assistant to whom that task was entrusted had to be instructed to work on the assumption that, once the notice of appeal had been filed and the appeal fee paid, a statement of grounds of appeal would in principle have to be filed within the four-month time limit laid down in Art. 108 EPC.

In T 198/16 the board held that a representative must give express and clear instructions to an assistant to the effect that the **appeal fee** had to be paid. It was not enough to rely on the assistant's deducing the duty to file the payment form from the notice of appeal.

In T 2450/16 the board noted that *epoline*® mainly dealt with the **electronic filing** of documents with the EPO. In the board's understanding, it was not an electronic guide supposed to convey knowledge about the right document(s) to file in a given situation. Rather the use of *epoline*® presupposed such knowledge. In other words, the assistant's use of *epoline*® could by no means replace the need for proper instructions from the representative.

(iv) Reasonable supervision

In T 949/94 of 24 March 1995 the board stated that a representative was expected to exercise reasonable supervision over the work delegated. This did not mean that he had to supervise the posting of every letter. Once he had signed a letter and ordered his secretary to post it, he was entitled to assume that it had been posted. In the light of that, the board was satisfied that the representative had exercised due care in dealing with his secretary (J 31/90, T 1171/13).

In T 1465/07 the secretary of the representative had previously worked for another partner and after her taking up her new job the instructions given in relation to the backup check consisted of little more than the order to continue to perform that check in the same way as she had done in her former position. The board considered that this was insufficient and that she required supervision at shorter intervals during the period immediately following her taking up the new job. Requiring such supervision was not only appropriate and necessary but also not disproportionate, as supervision does not require a substantial amount of time.

In T 1149/11 the board held that the duty of care concerning supervision of the assistant required that an effective cross-check was implemented, at least in a firm where a large

number of time limits have to be monitored. This was particularly so in the case at issue because the time limit for filing a notice of appeal and paying the appeal fee pursuant to Art. 108 EPC was absolutely critical; if the time limit was missed, there was no further ordinary remedy and the contested decision had legal effect (see also T 439/06, OJ 2007, 491).

In T 555/08 the board found that the requisite **standard of due care was not met by uncritically accepting the accuracy of an assistant's oral statements** although they must have been open to doubt (see T 602/94). Failure to query or check such statements had to be viewed in the context of the obligation to supervise assistants. Especially where there were signs that mistakes might have been made, it was essential to check whether assistants were correctly performing the duties assigned to them.

In T 2016/16 the board observed that the representative was not discharged from his or her duty to properly instruct and supervise the assistant, even if the time limits entered by the assistant in the docketing system were normally double-checked by a patent attorney.

c) Technically qualified assistants

In T 715/91 the board held that the consequences of an error by a technically qualified assistant (an engineer training for the European qualifying examination) imputed to the representative would also have to be borne by the appellants. The task of writing, or at least supervising, the despatch of important submissions, such as grounds of appeal, would normally fall to the representative himself. Furthermore, given that the assistant had only recently been taken on, the representative could not be expected to have been able to ascertain in such a short time to what degree the assistant did know the rules and regulations of the EPC.

In T 828/94 the board found inter alia that the technical assistant in charge was not supervised well enough and had not been properly instructed.

In T 832/99 the board, referring to the required standard in exercising due care, decided that a technical employee working in a firm of patent attorneys was not an assistant but was carrying out de facto the work of a patent attorney. This meant that the **same strict requirements** for due care would have to be applied to the technical employee as were applied to the appellant and the appellant's representative.

d) Substitutes replacing assistants

In J 16/82 (OJ 1983, 262) the Legal Board stated that the conditions relating to assistants also applied in the case of a substitute replacing an assistant who was on holiday, ill or otherwise absent. Where a qualified assistant was absent, therefore, the applicant or representative had either to be able to call on a similarly qualified substitute or else must himself take over the work assigned to the assistant. The **same standard of care** had to be exercised as regards the choice, instruction and supervision of the substitute as of the assistant himself (see also T 105/85).

e) Ultimate responsibility of the representative

In J 25/96 the statement of grounds for the request for re-establishment of rights explained inter alia that non-observance of the time limit had been caused by the assistant entrusted with monitoring time limits. The Legal Board held that the case law according to which a representative could entrust suitably qualified and supervised personnel with monitoring time limits had been developed for routine tasks and normal cases. It did not mean that a representative could also entirely leave such staff to monitor cases which (i) were **particularly urgent**, (ii) needed **particular attention** and further steps by the representative himself to ensure that the necessary acts were still performed in time, and (iii) could result in an **irrevocable loss of rights** if any error or delay occurred.

In T 719/03 the board did not accept the appellant's argument that the failure to comply with the time limit had been an isolated mistake by the qualified secretary who had noted on the cover page of the revocation decision only the time limit for appeal but not the time limit for filing the statement of grounds of appeal. The board held that the appellant's representative had himself failed to exercise due care, since the contested decision had been shown to him twice without his noticing the incompleteness of the note concerning the mandatory time limit that had to be monitored. The board took the view that, with the **careful handling** of a dossier involving statutory time limits, a representative was so often faced with the time limits to be observed that **compliance with the time limit was ensured**.

In T 439/06 (OJ 2007, 491), the board emphasised that fulfilling the requirements of proper selection, instruction and supervision only meant that the assistant's error in dealing with the delegated task could not be imputed to the representative. It did not mean that the representative's responsibility ended once and for all with the proper selection, instruction and supervision of the assistant, and that he need not take further care with respect to the delegated task (see also T 1149/11). Once the representative gets the file on his desk for his own action, in order to comply with the relevant time limit, **responsibility** passes over to him **in all respects**. All due care under these circumstances requires the representative to verify the time limit calculated by his records department when he receives the file for dealing with it. He cannot simply rely on having delegated this task once and for all to his records department (see also J 1/07, T 719/03, T 473/07).

Likewise in T 1561/05 the board held that the representative was personally at fault in failing, when signing the statement of grounds for appeal, to check the calculation of the time limits by his support staff and therefore to notice that the calculation was wrong. A task forming part of the representative's **core duties**, such as performing a **final check** when signing a submission which is subject to a time limit, cannot be delegated in a way that absolves the representative of responsibility.

In T 1095/06 the board stated that if the professional representative failed to act because he had not received a reminder due to some error of a properly chosen, properly instructed, and reasonably supervised assistant this could be regarded as "an isolated error in an otherwise satisfactory system" which would still allow re-establishment to be granted. However, a professional representative must be presumed to be **supervising his own**

work continuously. The case law on "an isolated mistake in an otherwise satisfactory system" could not be relied on to ignore a failure to act by the professional representative himself, unless there were special circumstances which made the failure to act compatible with taking all due care.

In T.592/11 the board held that, where a double check was carried out by the representative and an assistant, the former was liable for any negligence in performing his own part of this check. This was because, where double checks were carried out by assistants only, the representative had to perform an additional, third check (see T.439/06, T.1561/05). If, however, they were carried out by an assistant and the representative himself, the latter had to be subject to the same standard of care with respect to his part of the check. An isolated mistake by a professional representative in performing his check was then – as a rule at least – inexcusable.

In R.18/13 two "isolated" mistakes had been made, one by the professional representative, the other by his assistant. The Enlarged Board considered the travaux préparatoires and found that an "isolated mistake", such as assistants might make, was not excusable in a representative. If he was given a file to deal with, he could not simply assume that his assistants had reliably done all their work on it so far; he had to make sure, through appropriate control mechanisms before the file reached him, that time limits arising were complied with, or – at the latest when he was given the file to deal with – check for any time limits himself. The request for re-establishment was refused.

In T.600/18 the board held that Art. 122 EPC and the relevant case law (with reference to T.1095/06, T.592/11, R.18/13) did not excuse mistakes by the representative, even if the representative did not normally perform the duty of paying fees himself or herself.

5.5.5 Due care in using mail delivery services

In T.667/92 of 10 March 1994 the board considered whether the appellant could be said to have taken all the due care required by the circumstances when allowing only two days for delivery from the UK to Germany and whether, in these circumstances, the choice of using a special carrier for the delivery was in keeping with the due care requirement. The board pointed out that a party who missed a time limit had also to show due care in its **choice of method of delivery** and that the use of outside agents might be held against the applicant under Art. 122 EPC 1973 owing to a lack of proper safeguards. The board added that in parallel situations telefaxing should preferably be used, but accepted the explanation of the appellant why this means was not used. The board took into account the very extraordinary circumstances regarding the withholding of the item by the customs in Munich for 36 hours, an incident which could not reasonably be foreseen, and allowed the request.

In T.381/93 of 12 August 1994 the problem arose from the failure of the private courier service to deliver the package containing the corresponding documents to the EPO as instructed. Referring to T.667/92 of 10 March 1994 the board held that once a reliable carrier had been chosen and commissioned for the delivery, a party was entitled to rely on